

The case of Joe and Frank

Day 1 · Session 4 | Both sectors | Shared resource

Keep this document with you through the session. It contains the conflict-path reference model, the full Joe and Frank case text with its four analysis questions, the escalation-mapping worksheet for your small-group discussion, and the early-intervention grid for Part 3. Everything in this case is fictional; there is no role-play attached to this session.

Part 1 — The Conflict Path: Reference Model

Several causes of disputes may be apparent in a relationship, but the expression of this depends on the presence and influence of various intervening variables that serve to aggravate or moderate the conduct of the parties involved. The conflict path runs from causes of disputes, through aggravators and moderators, to manifestations of dispute — the visible, public form a dispute eventually takes.

Six types of underlying cause

Type	Description
Interest disputes	Caused by actual or perceived competition over substantive, procedural or psychological interests
Rights disputes	Caused by disagreement about the interpretation or application of existing rights in laws and agreements
Structural disputes	Caused by unequal control, ownership or distribution of resources, or by environmental or time constraints
Value disputes	May be caused by differing ideologies, beliefs, cultural norms or identity
Data disputes	Rooted in missing information, misunderstanding, or differences over the interpretation or relevance of data
Relationship disputes	Caused by breakdown in interpersonal acceptance, communication and understanding

Aggravators and moderators

Aggravators — what makes disputes worse	Moderators — what tends to moderate disputes
Unrealistic expectations	Genuine concern for the other party's needs and interests
Inaccurate perceptions	Cohesive, well-informed constituencies
Past unresolved conflict	Acceptance of mutual legitimacy
Divided or uninformed constituencies	Agreed conflict-resolution structures already in place
No agreed conflict-resolution mechanism	Effective communication skills
Lack of tolerance	Exchange of information
Lack of mutual trust and respect	Listening
Avoidance	Early notification
Use of coercion or threats	Early consultation
Stereotyping	Tolerance
Not listening	Early diagnosis of conflict
Poor communication skills	Honest post-dispute analysis

Some manifestations of disputes — how a dispute shows itself

Strikes	Non-compliance with agreements
Go-slows	Dismissals
Work-to-rule	Excessive absence
Overtime bans	Low morale
Boycotts	Insubordination
Lockouts	Withdrawal of recognition

Source: ITCILO, Joint Union/Management Negotiation Skills training package. Reproduced here for use in this workshop.

Part 2 — Case Study: Joe and Frank

In June, the Company computerized its stores department. Joe, the chief shop steward, and Frank, an active Union member, who were employed as stores clerks, slowly taught themselves how to operate the computer terminals in the stores. They were keen to improve their skills and educational level. A year later, they had mastered the computer terminal in the stores and were performing the jobs of computer operators. They felt they should receive some recognition and maybe some additional remuneration.

Joe then approached the stores supervisor and asked that the Company re-grade him and Frank upward. The stores supervisor, having been able to rely on Joe and Frank's skills, had not himself mastered the terminal. He feared that Joe and Frank were trying to supersede him, so he said he would look into the matter but, notwithstanding numerous reminders, he did nothing.

Joe and Frank then approached the factory manager and demanded that he immediately re-grade them upwards. He said that he would consider their demand and come back to them. He spoke to the Company's general manager. The general manager's attitude was that recognition might have been due to Frank and Joe but that job grading was a management prerogative. He feared that engaging Joe as senior shop steward about job grading would set a dangerous precedent and would constitute a victory for the Union in its pursuit of employee control. Although the factory manager wanted to discuss the matter with the employees to find a satisfactory outcome, the general manager decided it would be best not to respond to Joe and Frank at all, because any response would constitute a concession to negotiate about a management prerogative.

Joe and Frank eventually decided that if the Company were not prepared to re-grade them, then they would stop using the computer.

Joe and Frank were determined to pressurize the Company into giving them the recognition they demanded. They knew that the Company needed their computer skills and believed that if they withheld them, the Company would be forced to submit.

On the first day of their refusal they received a warning for failing to use the computer.

When they continued with their refusal they were given a final written warning for insubordination. They continued their refusal and finally they were summoned to a disciplinary enquiry and, after a full hearing, were dismissed for insubordination.

The employees at the Company were incensed. They believed that the real reason for the dismissal was that the Company wanted to get rid of the Union. They therefore stopped work and demanded Joe and Frank's reinstatement. The Company informed them that their work stoppage was illegal and that it would not talk to them until they returned to work. The employees did not heed management's request and began singing and marching in the car park.

The employees continued with their strike the following day. The Company's lawyers suggested that they resolve the dispute by going to court for an interdict ordering the striking employees to return to work. The Company gave the employees an ultimatum to return to work. When they did not heed the ultimatum they were dismissed.

The Union was anxious not to lose its membership at the Company and approached the Company, suggesting that the strikers be reinstated. The Company refused, and the Union then suggested that the case of Joe and Frank be taken to an independent arbitrator for determination. When the Company refused this too, the Union launched a consumer boycott against the Company with the support of various sympathetic political and church organizations. The Company felt morally obliged to stand its ground because it believed the Union's real intention was either to destroy it or to take it over.

The employees, on the other hand, believed that the Company was determined to rid itself of the Union. They felt Joe and Frank's original demand was reasonable, and that they had to fight to the bitter end for their jobs.

Source: ITCILO, Joint Union/Management Negotiation Skills training package. This case is entirely fictional and is not set in Kenya or in either sector represented this week.

Read through the case study, then — individually, then in your small group — answer:

Question 1

What is the basic underlying cause of the dispute between the parties? Use the six types opposite; do not simply answer “pay”.

Question 2

How did the dispute show itself? List the manifestations, in the order they appeared.

Question 3

What made the dispute worse? Work through the aggravators list in Part 1.

Question 4

What tended to moderate the dispute, if anything at all?

Part 3 — Escalation-Mapping Worksheet

Complete this as your small group works through the four questions on the previous page. There is no single correct answer — different groups reasonably emphasize different things — but be ready to explain your reasoning to the room.

Category	Our group's mapping — Joe and Frank
Underlying cause(s) — name the type(s)	

Category	Our group's mapping — Joe and Frank
Aggravators we identified	
Moderators we identified (if any)	
Manifestations, in the order they appeared	

Part 4 — The Early-Intervention Grid

This is the most important page in this document. Now that you can see how Joe and Frank's dispute escalated, go back through it one more time and ask a different question at each step: not what happened, but where dialogue could have changed it. Fill in the grid during the whole-room discussion, or straight afterwards while it is fresh.

Escalation Moment	Form of Dialogue Missing	What One Person Could Have Done Differently
The re-grading request		
Escalation to the general manager		
Withdrawal of cooperation		
Dismissal, then strike		
Arbitration refused		

Carry this habit, not just this page, into the rest of the week. Every time you notice a disagreement — in a role-play from Wednesday onward, or back at your own institution after this workshop ends — ask the same question: which form of dialogue would change what happens next, and whose job is it to start it? Keep this case general when you discuss it. If you find yourself thinking of a real, current situation at your own institution, that is exactly the point of the exercise — but it is for your own reflection, not for the room.